

Ram Kishun v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 August 2009 · WRIT - C No. - 38584 of 2009 · **Writ disposed; petitioners to make a proper application under clause 4.6(e).**

HEADNOTE

Mandamus for a private tube-well connection on full-deposit-work (15% supervision charge) terms was disposed of without a counter-affidavit. The Court held it was open to the petitioners to make a proper application under clause 4.6(e) of the U.P. Electricity Supply Code, 2005, which the respondents shall consider.

FACTUAL SUMMARY

The petitioners sought a mandamus commanding the respondents to grant an electricity connection for a private tube well on full-deposit-work terms, with only 15% supervision charges. Respondents' counsel submitted that clause 4.6(e) of the U.P. Electricity Supply Code, 2005 left it open to the petitioners to apply, and that no proper application had been made. The Division Bench heard the respondents and declined to keep the writ pending for a counter-affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

new connection — full deposit work / private tube well

HOLDING

Where the licensee contends that no proper application under clause 4.6(e) of the U.P. Electricity Supply Code, 2005 has been made for a private tube-well connection on full-deposit-work (15% supervision charge) terms, the writ court will not keep the mandamus pending or call for a counter-affidavit. It remains open to the consumer to make a proper application under clause 4.6(e), which the licensee shall consider. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus for a private tube-well connection on full-deposit-work (15% supervision charge) terms was disposed of without a counter-affidavit. The Court held it was open to the petitioners to make a proper application under clause 4.6(e) of the U.P. Electricity Supply Code, 2005, which the respondents shall consider. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A PRIVATE TUBE-WELL CONNECTION ON FULL-DEPOSIT-WORK / 15% SUPERVISION-CHARGE TERMS

Merits of the connection prayer were not examined; petitioners were relegated to a proper application under clause 4.6(e). ¶ 1